

RESIDENTIAL ROOM SUBLEASE AGREEMENT

Month-to-Month Tenancy — State of Texas

Property Owner:	Dunn Family Cemetery Inc.
Sublessor:	Matthew Cowan
Subtenant:	James Cowan Jr.
Premises:	One private bedroom at 2605 Cascade Falls Dr, Austin, TX 78738
Monthly Rent:	US \$750.00 (utilities not included)
Security Deposit:	None
Term:	Month-to-month, beginning on the Effective Date below

This Residential Room Sublease Agreement (this "Agreement") is made effective as of _____, 20____ (the "Effective Date"), by and between Matthew Cowan (the "Sublessor") and James Cowan Jr. (the "Subtenant"). The Sublessor and the Subtenant are sometimes referred to individually as a "Party" and collectively as the "Parties."

Article 1 – Parties

The Sublessor is Matthew Cowan, an occupant of the residence located at 2605 Cascade Falls Dr, Austin, Texas 78738 with rights of occupancy in that residence. The Subtenant is James Cowan Jr., who desires to rent one private bedroom within the residence together with the shared use of its common areas. The owner of the real property is Dunn Family Cemetery Inc. (the "Owner"). This Agreement creates a sublease of a room only; it does not transfer any ownership interest in the Property and does not create any landlord-tenant relationship between the Subtenant and the Owner except as required by law.

Article 2 – Definitions

For purposes of this Agreement: (a) "Property" means the residence and land located at 2605 Cascade Falls Dr, Austin, Texas 78738; (b) "Bedroom" means the private bedroom designated by the Sublessor for the Subtenant's exclusive use, together with any closet attached to it; (c) "Common Areas" means the kitchen, living room, dining areas, bathrooms not located within another occupant's private room, hallways, laundry facilities, driveway, and yard; (d) "Premises" means the Bedroom together with the non-exclusive right to use the Common Areas; and (e) "Rent" means the monthly rent described in Article 7.

Article 3 – Premises; Exclusive Use of Bedroom

The Sublessor subleases the Premises to the Subtenant, and the Subtenant rents the Premises from the Sublessor, on the terms of this Agreement. The Subtenant shall have exclusive possession of the Bedroom during the term of this Agreement. The Sublessor shall not enter the Bedroom except (a) with the Subtenant's consent, (b) in an emergency threatening life or property, or (c) upon at least twenty-four (24) hours' notice for repairs, maintenance, or inspection at a reasonable time.

Article 4 – Shared Common Areas

The Subtenant shall have non-exclusive use of the Common Areas in common with the Sublessor and any other authorized occupants of the residence. Each occupant shall use the Common Areas considerately, clean up after their own use, and refrain from storing personal belongings in the Common Areas in a manner that unreasonably interferes with their use by others. Household supplies for the Common Areas shall be shared or purchased as the occupants may agree from time to time.

Article 5 – Authority to Sublease

The Sublessor represents that he holds lawful rights of occupancy in the Property and that he has the authority, by agreement or authorization concerning the Property, to grant the occupancy described in this Agreement. If any consent of the Owner is required, the Sublessor is responsible for obtaining it, and an acknowledgment line for the Owner is provided at the end of this Agreement. This Agreement is a sublease of a room only and is not a conveyance of any interest in the real property.

Article 6 – Term

The tenancy under this Agreement is month-to-month. It begins on the Effective Date and automatically continues for successive one-month periods until terminated by either Party in accordance with Article 18 (Notice of Termination) or by operation of Texas law. No fixed end date applies, and neither Party is obligated beyond the notice period described in Article 18.

Article 7 – Rent

The Subtenant shall pay the Sublessor rent of Seven Hundred Fifty and 00/100 Dollars (US \$750.00) per month, due and payable in advance on or before the first (1st) day of each calendar month. Rent shall be paid by cash, check, or electronic transfer to the Sublessor, or by any other method the Parties agree to in writing. If the tenancy begins or ends on a day other than the first day of a month, Rent for that partial month shall be prorated on a daily basis. Rent received shall be applied first to the oldest amount outstanding.

Article 8 – Utilities

Utilities and services — including electricity, water, wastewater, gas (if any), trash collection, and internet — are not included in Rent. The occupants of the residence shall allocate utility costs among themselves by separate agreement, and the Subtenant shall pay his agreed share promptly when due. Failure to pay an agreed utility share is treated the same as failure to pay Rent under Article 17 (Default).

Article 9 – Security Deposit

No security deposit is required under this Agreement. If the Parties later agree in a signed writing that a deposit will be collected, that writing shall state the amount, and the deposit shall be held and returned in accordance with Chapter 92, Subchapter C of the Texas Property Code.

Article 10 – Occupancy

The Bedroom shall be occupied only by the Subtenant. The Subtenant shall use the Premises solely as a private residence and for no business or unlawful purpose. No other person may reside in the Bedroom or the residence at the Subtenant's invitation without the prior written approval of the Sublessor.

Article 11 – Guests

The Subtenant may host occasional guests, provided guests do not remain overnight for more than three (3) consecutive nights, or more than seven (7) nights in any calendar month, without the Sublessor's prior written consent. The Subtenant is responsible for the conduct of his guests and for any damage they cause. A guest who exceeds these limits without consent is an unauthorized occupant, and the Sublessor may require the guest to leave.

Article 12 – Keys and Access

The Sublessor shall provide the Subtenant with keys, codes, or other means of access to the residence and the Bedroom on or before the Effective Date. The Subtenant shall not duplicate keys or share access codes without the Sublessor's consent, shall keep the residence secured, and shall return all keys and access devices upon termination of the tenancy. The Subtenant shall not change or add locks without the Sublessor's consent, except as permitted by Texas law.

Article 13 – Maintenance

The Subtenant shall keep the Bedroom clean and sanitary, dispose of garbage properly, and exercise reasonable care in the use of the Common Areas, fixtures, and appliances. The Subtenant shall promptly notify the Sublessor of any condition in the Premises needing repair, any water leak, and any pest problem. The Subtenant shall not make alterations, paint, or install fixtures without the Sublessor's prior written consent.

Article 14 – Repairs

The Sublessor shall pursue repairs affecting habitability with reasonable diligence, either by performing them or by pursuing them with the Owner or the Owner's agent, consistent with the obligations and remedies set out in Chapter 92 of the Texas Property Code. The Subtenant shall provide notice of needed repairs as described in Article 18's notice provisions and shall allow reasonable access for repairs to be made.

Article 15 – Damage

The Subtenant is responsible for the cost of repairing any damage to the Premises or the residence caused by the Subtenant or the Subtenant's guests, beyond ordinary wear and tear. Ordinary wear and tear means deterioration that results from intended use without negligence, carelessness, accident, or abuse. Amounts owed under this Article are due within thirty (30) days after the Sublessor delivers a written, itemized statement of the cost of repair.

Article 16 – Quiet Enjoyment

Each Party shall respect the other's peaceful enjoyment of the residence. The Subtenant is entitled to quiet enjoyment of the Bedroom, and all occupants shall refrain from unreasonable noise or disturbances, particularly between 10:00 p.m. and 7:00 a.m., and shall comply with all applicable laws and any homeowners' association rules that apply to the Property.

Article 17 – Default

The Subtenant is in default if he (a) fails to pay Rent or an agreed utility share when due, (b) materially breaches any other provision of this Agreement and fails to cure the breach within a reasonable time after written notice, or (c) uses the Premises for an unlawful purpose. Upon default, the Sublessor may terminate the tenancy and pursue the remedies available under Texas law, including Chapter 24 of the Texas Property Code (eviction) after any legally required notice to vacate. The Sublessor shall not use "self-help" measures prohibited by law, such as lockouts or utility shutoffs, except as expressly permitted by the Texas Property Code.

Article 18 – Notices; Notice of Termination

All notices under this Agreement shall be in writing and delivered personally, by mail, or by electronic means (including text message or email) if the receiving Party has agreed to that method. Notice is effective upon personal delivery, three (3) days after mailing, or upon confirmed electronic delivery.

Either Party may terminate this month-to-month tenancy for any reason by giving the other Party at least one (1) month's written notice, consistent with Section 91.001 of the Texas Property Code. The tenancy terminates on the later of the date stated in the notice or one month after the notice is given. On or before the termination date, the Subtenant shall vacate the Bedroom, remove all personal property, return all keys and access devices, and leave the Premises in the condition required by this Agreement.

Article 19 – Proof of Residency

The Parties acknowledge that, upon execution, this Agreement establishes the Subtenant's lawful residential occupancy of the Property beginning on the Effective Date, subject to the terms of this Agreement. The Sublessor shall, upon reasonable request, confirm the Subtenant's residency to third parties with a legitimate need for verification (such as government agencies, schools, employers, or financial institutions).

Article 20 – Governing Law

This Agreement is governed by, and shall be construed in accordance with, the laws of the State of Texas, without regard to conflict-of-law principles. Venue for any dispute arising out of this Agreement lies in the county in which the Property is located.

Article 21 – Severability

If any provision of this Agreement is held invalid or unenforceable, that provision shall be enforced to the maximum extent permitted, and the remaining provisions shall continue in full force and effect.

Article 22 – Entire Agreement; Amendments; Waiver

This Agreement contains the entire understanding of the Parties concerning the subject matter and supersedes all prior oral or written agreements concerning it. Any amendment must be in writing and signed by both Parties. A Party's failure to enforce any provision on one occasion is not a waiver of that provision or of the right to enforce it on any other occasion.

Article 23 – Signatures

By signing below, each Party acknowledges having read and understood this Agreement and agrees to be bound by its terms, executed voluntarily as of the Effective Date.

SUBLESSOR

Matthew Cowan

Date: _____

SUBTENANT

James Cowan Jr.

Date: _____

OPTIONAL ACKNOWLEDGMENT BY PROPERTY OWNER

The undersigned, on behalf of the Owner, acknowledges this room sublease.

Authorized Representative, Dunn Family Cemetery Inc.

Date: _____